

date, nor with a copy of the Motion.

Disposition

The Motion will be dropped for calendar. It will not be continued.

6. 9:00 AM CASE NUMBER: L24-03495

CASE NAME: DISCOVER BANK VS. LYNDIA MATTHEWS

*HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

FILED BY: MATTHEWS, LYNDIA J

TENTATIVE RULING:

Background

Defendant filed a Motion, on 1/26/26, to set aside the Default Judgment, claiming that there was a lack of actual notice, under Section 473.5 of the CCP, and also attributing the failure to respond to mistake, inadvertence, neglect or surprise, under Section 473(b) of the CCP.

The Default Judgment was filed on 9/30/25.

The Motion is unopposed, but there is no proof that the Plaintiff was given notice of Defendant's motion or the hearing.

However, given the court's tentative ruling, below, there is no prejudice to the Plaintiff in proceeding with this analysis.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant does not receive actual notice of the process; as well as Section 473(b) of the CCP, which provides the same authority in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect.

Section 473(b) of the CCP requires that the motion be made no later than 6 months from the time the judgment was taken.

Section 473.5 of the CCP allows a longer period of time within which a defendant can make a motion, which is the earlier of: 2 years from the time judgment was taken; or 180

days after service on defendant with written notice that judgment was taken.

Plaintiff filed a proof of service on 5/22/24, of which the court takes judicial notice, reflecting that a process server completed personal service on 5/22/24. The person who was served identified herself as Lynda J. Matthews, and the service took place at the same address the Defendant used on this Motion. The service was done by a registered process server, which raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Defendant, in her declaration claims she was not notified of the Default Judgment in the instant matter, and also that she was not notified of an OSC hearing scheduled on 7/31/25. She does, however, concede that she received notice of a CMC that was scheduled for 11/17/25, for which she appeared in court.

The court takes judicial notice of the written notice mailed to Defendant from the Court Clerk's Office, on 7/31/25. That notice reflected the CMC date of 11/17/25, the one of which Defendant was aware. The mailing address is the same as that where personal service of process on the Defendant was completed which, the court notes again, is the same address as that used by Defendant for this Motion.

The court does not find Defendant's position to be credible and does not find that the presumption of proper service has been rebutted.

Disposition

Defendant's Motion is Denied.

If Plaintiff does not appear, then the court will file the Order.

6. 9:00 AM CASE NUMBER: L24-04232

CASE NAME: CITIBANK N.A. VS. GINO MAYNETTO

*HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT (CONTINUED FROM 1/27/26)

FILED BY: CITIBANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion on 1/7/26, to vacate dismissal and enter judgment pursuant to stipulation. The Motion was originally scheduled for 1/27/26 and was unopposed. However, the court continued the Motion, apparently to 3/17/26, per the Minutes from